

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY  
OF THE CITY OF CHEYENNE**

Office of City Clerk

February 9, 2009

The Governing Body of the City of Cheyenne met on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. The pledge of allegiance was recited.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mayor Kaysen, and pursuant to support received by Mr. Collins and Mr. Brown, agenda item #23(a) was removed from the Consent Agenda. Upon request by Mr. Collins, and pursuant to support received by Mr. Brown and Ms. Ash, agenda item #20(c) was removed from the Consent Agenda. Mayor Kaysen clarified his request to remove item #23(a), Appointment, was due to provisions of state statute that place restrictions on the mayor voting on a mayoral appointee. It was noted that procedurally members did not need to officially provide a "second" to a request to remove consent agenda items. Mr. Brown moved to approve remaining Consent Agenda items, seconded by Mr. Collins. Motion carried. Voting "yes" – all members of the governing body.

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON JANUARY 26, 2009. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON FEBRUARY 2, 2009. Motion (per Consent Agenda) carried.

Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Collins. Motion carried. Voting "yes" – all members of the governing body.

"AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM CB COMMUNITY BUSINESS DISTRICT TO HR-2 HIGH-DENSITY RESIDENTIAL-DEVELOPING DISTRICT FOR LOT 6, BLOCK ONE, GATEWAY SOUTH, CHEYENNE, WYOMING (LOCATED EAST OF WALTERSCHEID BOULEVARD AND SOUTH OF WEST FOX FARM ROAD)." R.C. Reiman, manager for Gateway South, submitted a letter (on file with City Clerk's office) requesting postponement of the item to Feb. 23, 2009 to allow time to continue negotiations regarding zone change issues. Reporting for Public Services Committee, Mr. Brown moved to approve on third and final reading, seconded by Mr. Pierson. Mr. Brown moved to postpone for two weeks (to Feb. 23, 2009), seconded by Mr. Pierson.

Upon inquiry, Carol Intlekofer, City Clerk, confirmed the item would be reviewed at the Tuesday, Feb. 17, 2009 Public Services Committee meeting which begins at 12:15 p.m. in meeting room #122, Municipal Building. Motion to postpone carried. Voting “yes” – all members of the governing body.

“AN ORDINANCE AMENDING TITLE 17 ZONING, CHAPTER 17.08 ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM LR-2 LOW DENSITY RESIDENTIAL-DEVELOPING DISTRICT AND A-1 AGRICULTURAL AND RURAL RESIDENTIAL DISTRICT TO PUD PLANNED UNIT DEVELOPMENT DISTRICT FOR A REPLAT OF BLOCK 5, LOT 1, A PORTION OF BLOCK 5, LOT 2, THE POINTE; AND THAT PARCEL DESCRIBED IN BOOK 1705 AT PAGE 5 OF THE LARAMIE COUNTY CLERK’S RECORDS, SITUATED IN THE N½ OF THE SW¼ OF SECTION 17 AND THE N½ OF THE SE¼ OF SECTION 18, T.14N., R.66W., 6<sup>TH</sup> P.M., CHEYENNE, WYOMING, ALSO TO BE KNOWN AS POINTE PLAZA (LOCATED WEST OF AND ADJACENT TO POWDERHOUSE ROAD, NORTH OF GARDENIA DRIVE).” Mr. Brown moved to approve on third and final reading, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body. (#3841)

“AN ORDINANCE CREATING SECTION 10.24.170, DISTRACTIVE DRIVING PROHIBITED; EXCEPTIONS, OF CHAPTER 10.24, RULES OF THE ROAD GENERALLY, OF TITLE 10, VEHICLES AND TRAFFIC, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING” -- referred to Public Services Committee (sponsor - Mr. Brown).

[CA] “A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR PROPERTIES SITUATED IN A PORTION OF SECTION 1, 12, AND 17, T.13N., R.67W., 6<sup>TH</sup> P.M., LARAMIE COUNTY, WY (LOCATED SOUTH OF I-80 AND PREDOMINANTLY EAST OF SOUTHWEST DRIVE” – referred to Public Services Committee (due to postponement since Jan. 12, 2009).

[CA] “A RESOLUTION AUTHORIZING THE PURCHASE OF EQUIPMENT AND SERVICES FROM THE WESTERN IDENTIFICATION NETWORK IN AN AMOUNT NOT TO EXCEED \$48,577.00 FOR THE POLICE DEPARTMENT TO OBTAIN AN AUTOMATED FINGERPRINT IDENTIFICATION SYSTEM (AFIS), USING HOMELAND SECURITY GRANT MONIES.” Motion (per Consent Agenda) carried (amount not to exceed \$48,577.00). (#5099)

[CA] “A RESOLUTION APPROVING THE SALE OF CITY-OWNED SURPLUS PROPERTY LOCATED GENERALLY SOUTH OF 9<sup>TH</sup> STREET AND EAST OF DUFF AVENUE, CHEYENNE, WYOMING, AND AUTHORIZING THE MAYOR TO EXECUTE A QUITCLAIM DEED TO CONVEY SAID REAL PROPERTY, CONTAINING APPROXIMATELY 3,816 SQ. FT., TO SCHROLL CABINETS, INC., CHEYENNE, WYOMING, TO BENEFIT THE ECONOMIC DEVELOPMENT OF THE MUNICIPALITY IN ACCORDANCE WITH WYO. STAT. §15-1-112 (B).” Motion (per Consent Agenda) carried. (#5100)

[CA] “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR POINTE PLAZA, A REPLAT OF BLOCK 5, LOT 1, A PORTION OF

BLOCK 5, LOT 2, THE POINTE; AND THAT PARCEL DESCRIBED IN BOOK 1705 AT PAGE 5 OF THE LARAMIE COUNTY CLERK'S RECORDS, SITUATED IN THE N½ OF THE SW¼ OF SECTION 17 AND THE N½ OF THE SE¼ OF SECTION 18, T.14N., R.66W., 6<sup>TH</sup> P.M., CHEYENNE, WYOMING (LOCATED AT THE NORTHWEST CORNER OF GARDENIA DRIVE AND POWDERHOUSE ROAD)." Motion (per Consent Agenda) carried. (#5101)

"A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A COUNTY FINAL PLAT FOR JEFFERSON HILLS SUBDIVISION, A REPLAT OF A PORTION OF LOT 1, BLOCK 1, LEY SUBDIVISION AND TRACT 2, HERMANN MEADOWS SUBDIVISION, LARAMIE COUNTY, WYOMING (LOCATED NORTH OF AND ADJACENT TO E. JEFFERSON ROAD, EAST OF S. GREELEY HIGHWAY)." Mr. Spiker declared a conflict of interest and indicated he would not be participating in discussion and voting, and vacated Council Chambers. Mr. Brown moved to adopt, seconded by Mr. Pierson. Mr. Brown moved to postpone to March 9, 2009, seconded by Dr. Rinne. It was noted a postponement was requested by the developer. Motion to postpone carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Spiker returned to Council Chambers.

"A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A COUNTY FINAL PLAT FOR SNOWARDT SUBDIVISION, A REPLAT OF THE SOUTH 120 FEET OF TRACT 4, CAPITOL TRACTS, LARAMIE COUNTY, WYOMING (LOCATED NORTH OF AND ADJACENT TO HELLWIG ROAD, WEST OF YORK AVENUE)." Mr. Brown moved to adopt with County conditions #1 through 5, seconded by Mr. Pierson. Upon inquiry, Abby Yenco, Laramie County Planning, provided information on County condition #5 involving a road status form and stated as there will be no changes to the road, the form would not be required. Concern was expressed that the roadway width proposed (50 ft.) was not the standard 60 ft. width contained in the current Road, Street and Site, Planning and Design Standards. Ms. Yenco advised the final plat had been reviewed and adopted before but the time frame for filing the plat had expired, and that the previous plat reflected a roadway width of 50 ft. Discussion followed on including an additional 5 ft. of right-of-way on each side of the street to ensure the roadway would meet future width compliance. Mr. Pierson moved to amend by modifying the 50 ft. roadway width to 60 ft. with 5 ft. of right-of-way added to each side of the roadway, seconded by Mr. Collins. Upon inquiry, Ms. Yenco stated if the amendment is approved it will not affect adjacent properties until those properties are developed at which time the additional right-of-way for roadway width would be required. Motion to amend to increase the roadway width to 60 ft. (additional 5 ft. of right-of-way on each side of the roadway) carried. Voting "yes" – all members of the governing body. Upon inquiry, Ms. Yenco advised the County Commissioners have not yet acted upon the final plat. Main motion as amended carried. Voting "yes" – all members of the governing body. (#5102)

[CA] "A RESOLUTION RE-APPROPRIATING THE FISCAL YEAR 2009 BUDGET OF THE CITY OF CHEYENNE ACCORDING TO THE PROVISIONS OF WYO. STAT. §16-4-112 AND §16-4-113" -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR ZOEYLYNN SUBDIVISION, A REPLAT OF LOT 10, BLOCK 4, GOULD SUBDIVISION, CHEYENNE, WYOMING (LOCATED AT THE NORTHWEST

CORNER OF THE INTERSECTION OF EVERTON DRIVE AND HARMON AVENUE)” -- referred to Public Services Committee (sponsor - Mr. Brown).

#### **PRELIMINARY PLATS/PRELIMINARY ZONE CHANGES:**

County Preliminary Plat for Foxtail Subdivision, a replat of Tract 6 and a portion of Tract 7, Allison Tracts, Laramie County, Wyoming (located south of and adjacent to E. Fox Farm Road, east of S. Greeley Highway). Mr. Spiker declared a conflict of interest and indicated he would not be participating in discussion and voting, and vacated Council Chambers. Kelly Hafner, Benchmark Engineers, agent for the applicant, requested a postponement to allow time to schedule a neighborhood meeting. Mr. Brown moved to acknowledge receipt of the County Preliminary Plat, seconded by Mr. Collins. Mr. Brown moved to postpone to March 9, 2009, seconded by Mr. Collins. Motion to postpone carried. Voting “yes” – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Spiker returned to Council Chambers.

[CA] Preliminary Plat for Classic Subdivision, a replat of Lot 1, Block 1, Griffin Addition, Cheyenne, Wyoming (located west of Missile Drive, between Old Happy Jack and Westland Roads) -- referred to Public Services Committee.

#### **LEASES/CONTRACTS/LEGAL:**

[CA] Consideration of FAA Grant #3-56-0005-42 between the City of Cheyenne, the County of Laramie, and the Cheyenne Regional Airport Board in the amount of \$100,000.00, for the implementation of a Safety Management System (SMS). Motion (per Consent Agenda) carried. (#5332)

[CA] Consideration of FAA Grant #3-56-0005-43 between the City of Cheyenne, the County of Laramie, and the Cheyenne Regional Airport Board, in the amount of \$324,621.00, for an update to the Airport’s Master Plan. Motion (per Consent Agenda) carried. (#5333)

Consideration of a Joint Powers Board Agreement between the County of Laramie, the City of Cheyenne, and Laramie County Community College, to create the Laramie County Early Education and Development Joint Powers Board. Reporting for Finance Committee, Mr. Valdez moved to approve, seconded by Ms. Broyles. Concerns were expressed regarding government competition with private business, and city involvement in the program. Ken Dugas, Early Education Partnership Board member, explained the purpose of the Joint Powers Board (JPB) proposal, stating the early education facility to be constructed would serve approximately 185 students, and reviewed anticipated building, personnel and operating costs. Discussion included the following topics: Cost of facility construction (\$4,000,000.00) and operating costs; fiscal concerns relative to future funding requests to the City; proposed application by the JPB for a Wyoming Business Council grant in the amount of \$3,000,000.00 for the facility; lack of child care facilities locally and state-wide; support for the Early Education Partnership; Laramie County Community College involvement; community needs, and budgetary concerns. Upon inquiry, Mr. Dugas provided information on the proposed budget plan and operating budget; purpose of the JPB, which is to assist with financing for facility construction, and future possibility of leasing the facility to an operator. John Fafoutakis expressed concerns with government competing with the private sector. Further comments followed on facility

construction costs and identification of the funding source to cover the difference between the cost of construction vs. grant funds, if approved, from the Wyoming Business Council. Rod Hottle, United Way, provided information on monetary donations that have been received and/or pledged toward the Early Education facility. Upon further inquiry, Mr. Dugas explained the Partnership Board's decision to seek formation of a JPB and discussed quality early care and education; aspects involving student admission criteria and enrollment costs; seeking possible scholarships to help off-set costs to facility users and potential business/employee cost sharing; flexible facility hours; quality of educational staff to be hired; program similarity to the Montessori School, and attendance costs compared to other community facilities. Upon inquiry, Connie Sloan-Cathcart, Director of Laramie County United Way, advised they have been a partner in the Early Education Partnership program from its inception and that the agency supports the Partnership's efforts. Concern was expressed with certain provisions contained in the agreement relative to an "opt out" clause for JPB members, and dissolution of the JPB. Upon inquiry, Tim Thorson, Laramie County Grants Manager, reviewed the process that has been followed for drafting and seeking required approvals for the JPB agreement, stating it was modeled after an agreement utilized in Sheridan, and indicated the agreement meets the requirements of state statutes pursuant to the JPB Act. Upon inquiry concerning insurance coverage, Erik Rasmussen, Deputy City Attorney, confirmed the JPB would not be a covered Board through the Wyoming Association of Risk Management. Mr. Hottle and Ms. Sloan-Cathcart indicated once the JPB agreement is approved, insurance would be in place prior to the effective starting date of the JPB. Motion carried. Voting "yes" – all members of the governing body with the exception of Ms. Ash, Mr. Collins and Dr. Rinne voting "no". (#5334)

Lease Agreement between the City of Cheyenne and L and L, Inc., for the use of the Kingham Prairie View Clubhouse and the provision of golf services at the Kingham Prairie View Golf Course. Mike LePore, L & L, Inc. requested a 45 day postponement to allow time to provide further information. Mr. Valdez reported there was no recommendation on the item from Finance Committee. Mr. Pierson moved to approve, seconded by Mr. Spiker. Mr. Pierson moved to postpone to March 23, 2009, seconded by Ms. Broyles. It was advised the postponement will provide time to meet with L and L, Inc. to discuss financial matters involving services provided for the city's golf courses. Motion to postpone carried. Voting "yes" – all members of the governing body.

Professional Services Agreement between the City of Cheyenne and L and L, Inc., for the provision of golf services at the Airport Golf Course. Mike LePore, L & L, Inc., requested a 45 day postponement to allow time to provide further information. Mr. Valdez reported there was no recommendation on the item from Finance Committee. Mr. Pierson moved to approve, seconded by Mr. Spiker. Mr. Pierson moved to postpone to March 23, 2009, seconded by Mr. Spiker. Motion to postpone carried. Voting "yes" – all members of the governing body.

[CA] Contract between the City of Cheyenne, Police Department, and PropertyRoom.com, Inc., a Delaware Corporation, for property disposition services to dispense of unclaimed property being stored in the evidence room -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and AVI, P.C. for design services for the Carey Avenue and Pioneer Avenue Rehabilitation Project (2007-2010 1% Sales Tax) -- referred to Finance Committee.

## **CHANGE ORDERS/CONTRACT MODIFICATIONS:**

[CA] Contract Modification No. 1 to Contract No. 5316 between the City of Cheyenne and J-2 Contracting Co., Inc., for additional work and amenities for the David R. Romero South Cheyenne Community Park (Wyoming Business Council - Community Enhancement Grant). Motion (per Consent Agenda) carried (amount not to exceed \$551,212.71).

[CA] Contract Modification No. 1 to Contract No. 5203 between the City of Cheyenne and Simon Contractors to install a pump system at the East Cheyenne Greenway Extension Project, U.S. 30 below grade crossing (1% Specific Purpose Sales and Use Tax) -- referred to Finance Committee.

## **CONSIDERATION OF BIDS:**

[CA] Consideration of Bid #M-10-09 for a contract between the City of Cheyenne and DC Construction, for a 40' x 56' post frame building at Taco John's Ice and Event Center. Motion (per Consent Agenda) carried (amount not to exceed \$40,402.00). (#5335)

[CA] Consideration of Bid #R-17-09 for furnishing one new 2009 extended cab and chassis with platform lift installed from Ameri-Tech Equipment of Casper, WY, for the Traffic Dept. (2003-2006 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-19-09 for the purchase of 120 MSA carbon cylinder bottles and to trade 94 outdated cylinder bottles to Front Range Fire Apparatus of Longmont, CO, for the Fire & Rescue Dept. -- referred to Finance Committee.

[CA] Consideration of Bid #R-20-09 for the surplus sale of one used Troxler Electronic Road Reader utilized by the Construction Dept. to Troxler Electronic Labs of Research Triangle Park, NC -- referred to Finance Committee.

## **APPOINTMENTS:**

Appointment of Jack R. Spiker to the Downtown Development Authority Board. Mr. Collins moved to approve, seconded by Mr. Pierson. Mr. Spiker declared a conflict of interest, excusing himself from discussion and voting, and vacated Council Chambers. Inquiry was made regarding the appointment process and whether consideration was made of Board representation by a member of City Council Ward I, whose ward boundaries include the DDA District. Mayor Kaysen explained the mayoral appointment process he followed concerning the proposed appointee. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers with the exception of Mayor Kaysen who did not vote (Mayoral appointment). Following announcement of the vote, Mr. Spiker returned to Council Chambers.

## **ANNOUNCEMENTS/REPORTS/MOTIONS:**

Announcement was made that due to the President's Day holiday on Monday, February 16, 2009, Finance Committee will meet at 11:00 a.m. and Public Services Committee will meet

at 12:15 p.m. on Tuesday, February 17, 2009, in Council Meeting Room 122; Vouchers meeting will be held in Council Chambers at Noon.

Announcement was made of a Public Hearing to be held February 23, 2009 at 6:00 p.m., in City Council Chambers, at 2101 O'Neil Avenue, to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exists for the property described as Lot 5, Block 2, Seaver's Subdivision, Laramie County, WY.

Announcement was made of a Public Hearing to be held February 23, 2009 at 6:00 p.m., in City Council Chambers, at 2101 O'Neil Avenue, for renewal of existing City liquor licenses (retail, restaurant, limited retail, resort, microbrewery and bar and grill) filed with the City Clerk's Office.

Announcement was made of a Public Hearing to be held February 23, 2009 at 6:00 p.m., in City Council Chambers, at 2101 O'Neil Avenue, for a restaurant liquor license application filed with the City Clerk's Office for Pizza Hut of Cheyenne, Inc. d/b/a Pizza Hut/Wing Street, 4503 Western Way, Cheyenne, WY.

Announcement was made of the appointments of Richard Wiederspahn to the Laramie County Early Education and Development Joint Powers Board, Terry Roush to the Housing and Community Development Advisory Council, and Teresa Garrido to the Public Transit Advisory Board, to be confirmed February 23, 2009.

[CA] Consideration of proposal recommended by the Art In Public Places Committee to acquire artwork to be known as "Iron Horse" from Lyle Nichols, Palisades, CO, for placement at the Depot Plaza -- referred to Finance Committee.

#### **OTHER CITY BUSINESS:**

Ms. Broyles announced a meeting will be held Feb. 18, 2009 at 6:30 p.m., Bain Elementary School, to provide information to Sun Valley area residents on establishing a neighborhood watch program, and provided information on how to obtain community graffiti removal kits.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:18 p.m.

Submitted by,

Carol Intlekofer, MMC  
City Clerk

This notice is available in alternative, accessible formats upon request.

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